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Western University

Drug-Checking Initiative

Prospective Partner Site

Informational Onboarding Document

A Novel Concurrent Two-Phase Drug-Checking Initiative

Leading the Way: People with Lived and Living Experience at the Forefront of Drug-Checking Initiatives

Health Canada - Substance Use and Addictions Program (SUAP) | Contribution Agreement #2425-HQ-000058 | Amending Agreement #1

Western University — Faculty of Science, Department of Chemistry | In partnership with Scatr Inc.

Prepared by Cameron Brown, Project Manager

Welcome

This document is provided to prospective partner sites as a program-overview package: it describes how the project began, what we currently do, what data we collect, what we ask of partners, and what we provide in return.

The initiative is hosted by the Department of Chemistry at Western University in partnership with Scatr Inc., and is funded by Health Canada's Substance Use and Addictions Program (SUAP). ¹ Together with our 22 partner organizations across seven provinces, we operate one of the largest networked drug-checking programs in Canada, designed to deliver real-time results to people who use drugs at the point of care while contributing comparative laboratory analysis and longitudinal evidence to the harm-reduction research base. ²

1. Project Background & Timeline

The project has its origins in the federal Drug Checking Technology Challenge and has progressed through two distinct contribution agreements with Health Canada. The summary below covers each phase at a high level.

1.1 The Drug Checking Technology Challenge (2018–2021)

In October 2018, Health Canada launched the Drug Checking Technology Challenge through Impact Canada, an open competition seeking portable, accurate, and easy-to-use technologies capable of identifying substances in unregulated drug supplies. ³ After a multi-year evaluation and pilot phase, in July 2021 Scatr Inc. was announced as the grand-prize winner in recognition of its machine-learning-enabled Raman spectrometer platform. ⁴

The Western University – Scatr partnership emerged directly from this outcome: Professor François Lagugné-Labarthe's spectroscopy research group at Western had the analytical expertise required to validate the device against gold-standard laboratory methods, and Scatr had the device, software, and cloud platform to deliver point-of-care results across a distributed network. ⁵

1.2 Phase #1 — Contribution Agreement #2223-HQ-000095 (2022–2024)

Phase #1 — “Creating a Drug-Checking Network Using Machine Learning Enabled Spectrometers” (Contribution Agreement #2223-HQ-000095) — ran from 2022 through March 31, 2024. Phase #1 deployed Scatr Series One devices to ten harm-reduction and drug-checking sites across Canada, established the analytical pipeline and chain-of-custody workflow at the Western University laboratory, and produced the data set that underpins the project's first peer-reviewed publication. ^{1,2}

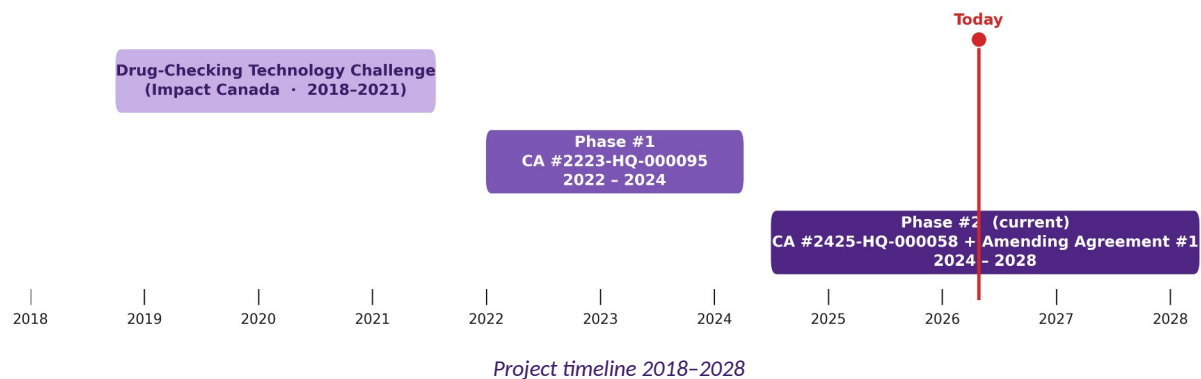
Across Phase #1, Western processed 7,752 street-drug samples over a fourteen-month period (July 2023 – August 2024), comparing Raman point-of-care results against HPLC-MS confirmatory analysis and collecting self-reported behavioural data from 3,902 service users. The findings, published in Harm Reduction Journal in February 2026, demonstrated the feasibility, reliability, and harm-reduction value of a networked spectrometer deployment in Canadian community settings. ²

1.3 Phase #2 — Contribution Agreement #2425-HQ-000058 + Amending Agreement #1 (current)

Phase #2 — “Leading the Way: People with Lived and Living Experience at the Forefront of Drug-Checking Initiatives” (Contribution Agreement #2425-HQ-000058) — is the project’s current and active phase. It is structured around four federal fiscal years (April 1, 2024 – March 31, 2028) and expands the network beyond Phase #1 to a coast-to-coast footprint that includes British Columbia, Alberta, Saskatchewan, Ontario, Quebec, New Brunswick, and Nova Scotia. ¹

An Amending Agreement (Amending Agreement #1, signed March 11, 2025) was executed to expand the network and earmarked additional resources for three secondary Scatr devices to support multi-device sites.

The defining feature of Phase #2 is its embedded role for People with Lived and Living Experience (PWLLE). PWLLE participate as Drug-Checking Peers (DCPs), receiving formal training and certification, and contributing to focus-group consultations on materials and workflow. The project’s design treats PWLLE expertise as central rather than supplementary, on the principle that the most useful improvements to drug-checking services come from the people who use them.

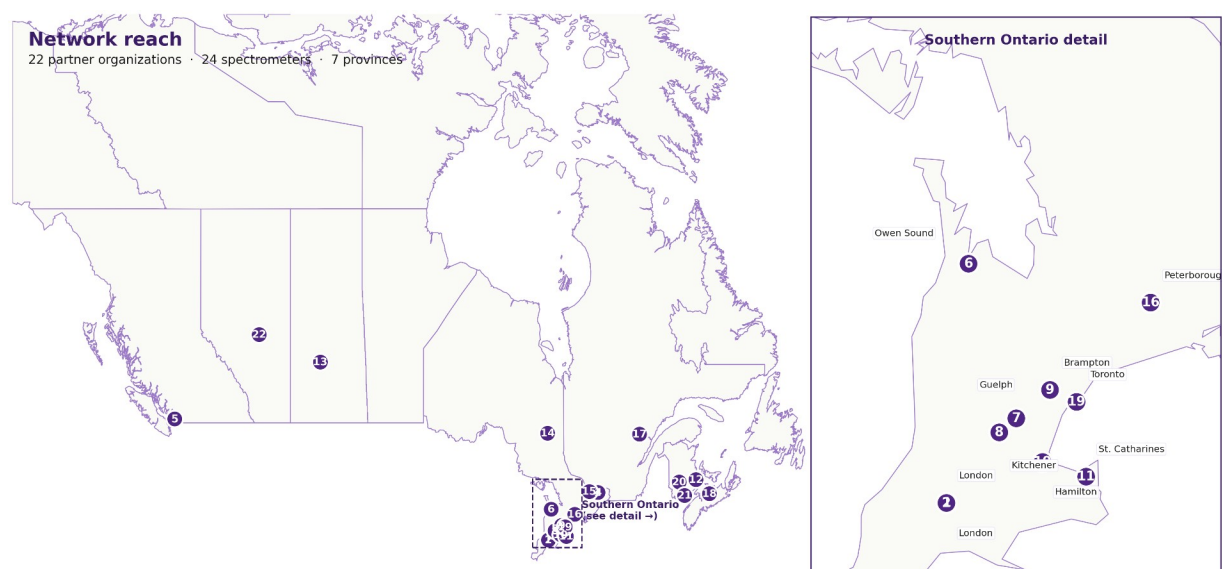


2. The Network at a Glance

As of the date of this document, the project network consists of 22 partner organizations operating 24 Scatr Series One Raman spectrometers across 20 cities in 7 provinces. Two further devices are scheduled for deployment in fiscal year 3 (April 2026 – March 2027) and two in fiscal year 4 (April 2027 – March 2028), bringing the total to 28 devices at project completion.

Metric	Value
Partner organizations	22
Spectrometers currently deployed	24
Spectrometers at project completion (target)	28
Provinces represented	7
Cities represented	20

Where We Operate



Pin numbers on the map correspond to the legend below

- | | |
|---|---|
| 1. Western University (lead) • London, ON | 12. Ensemble Moncton • Moncton, NB |
| 2. Regional HIV/AIDS Connection (RHAC) • London, ON | 13. Prairie Harm Reduction • Saskatoon, SK |
| 3. Sandy Hill Community Health Centre • Ottawa, ON | 14. Cochrane District Paramedic Service • Timmins, ON |
| 4. Ottawa Inner City Health • Ottawa, ON | 15. Renfrew Paramedic Services • Renfrew, ON |
| 5. Lower Mainland Purpose Society • New Westminster, BC | 16. Peterborough AIDS Resource Network • Peterborough, ON |
| 6. County of Grey • Owen Sound, ON | 17. Travail de rue de Chicoutimi • Chicoutimi, QC |
| 7. Guelph Community Health Centre • Guelph, ON | 18. NHC Society • Truro, NS |
| 8. Sanguen Health Centre • Kitchener, ON | 19. Breakaway • Toronto, ON |
| 9. Moyo Health & Community Services • Brampton, ON | 20. AIDS New Brunswick • Fredericton, NB |
| 10. Hamilton Urban Core CHC • Hamilton, ON | 21. Avenue B Harm Reduction Inc. • Saint John, NB |
| 11. Positive Living Niagara • St. Catharines, ON | 22. Boyle Street Community Services • Edmonton, AB |

3. The Scatr Series One Raman Spectrometer

The Scatr Series One is a portable, near-infrared Raman spectrometer paired with a machine-learning identification engine. It is operated at the point of care: a small amount of a sample is loaded into the device, scanned, and a substance identification is returned within seconds. The device does not consume the sample, does not require reagents, and is designed to be operated by trained harm-reduction staff and Drug-Checking Peers — not by laboratory chemists. ²

The Series One returns substance identifications based on the molecular fingerprint of the sample, drawn against a curated reference library maintained by Scatr Inc. and continuously expanded as new substances enter the unregulated drug supply.

4. Data Collection

Two complementary data streams flow from each Scatr device to Western University and Scatr Inc., both governed by the project's Health Canada §56(1) exemption and by the project's research ethics approval through the Western University Health Sciences Research Ethics Board (HSREB).

4.1 Device Utilization Data

Device-utilization data is captured automatically each time a sample is scanned at a partner site. Each record includes a non-identifying client code, the date and time of the scan, the operator/site identifier, the expected substance(s) named by the service user, optional descriptive notes (e.g., colour, texture), and the substance(s) detected by the Scatr device. Demographic fields — age, gender, Indigenous identity, and others — are optional and entered only when the service user volunteers them. ²

These records are made available to partners via the Scatr Inc. portal (scatr.ca) and inform site-level reports, network-wide trend monitoring, and the project's reporting obligations to Health Canada under SUAP.

4.2 Laboratory-Results Data

Laboratory-results data is generated when a sample is forwarded from a partner site to the Western University Chemistry laboratory for confirmatory analysis. Western runs samples on a Raman spectrometer first and then by mass spectrometry (LC-MS / GC-MS) and complementary techniques such as NMR and infrared spectroscopy as appropriate. A subset of samples is forwarded onward to the federal Drug Analysis Service (DAS) for a third level of confirmatory analysis. Results are returned to the Scatr platform and visible to the originating partner site. ²

All sample transport between partner sites and Western is conducted under a documented chain-of-custody workflow that satisfies the requirements of Western's Health Canada §56(1) exemption. A standard operating procedure for sample preparation is provided to every partner site as part of onboarding.

4.3 Aggregate Network Reporting

At the network level, the project also reports monthly to Health Canada on aggregate laboratory analyses (sample counts, expected versus detected substances, samples forwarded to the Drug Analysis Service) and contributes to the federally maintained surveillance picture of opioid- and stimulant-related harms in Canada. ^{1,6}

5. Drug-Checking Peer (DCP) Training & Certification

Every active partner site is asked to host one Drug-Checking Peer (DCP) Training & Certification session for People with Lived and Living Experience drawn from its service user community and/or staff. The training is a one-time, three-hour session that combines hands-on instruction on the Scatr Series One device, results-interpretation practice, group discussion of self-care and boundaries when delivering drug-checking services, and a closing certification component that issues a Western-branded Certificate of Achievement to each successful participant.

The training is offered in two approved formats: in-person, with a Western trainer travelling to the partner site and co-signing materials at the close of the session; or virtual, delivered over Zoom by a Western trainer with a

local Primary Site Contact handling on-site logistics and audio-visual setup. Both formats satisfy the project's ethics and reporting requirements.

5.1 Letter of Information & Consent and Pre/Post Surveys

Every participant in a DCP Training session completes two Western HSREB-approved instruments, in compliance with the Tri-Council Policy Statement (TCPS 2): a Letter of Information and Consent (LOIC) before the session begins, and a paired Pre-Training and Post-Training Survey.⁷ The surveys are completed on paper at the session itself and capture self-reported confidence, knowledge, and capacity to deliver drug-checking services. Pre/post comparison is the project's primary indicator of training effectiveness and is reported to Health Canada under SUAP.

Templates for both instruments — the LOIC and the Pre/Post Survey package — are provided directly to Primary Site Contacts in the weeks ahead of each scheduled session.

5.2 Site Stipend

Each partner site that hosts a DCP Training & Certification session receives a \$3,000 CAD stipend, paid by Western University on receipt of an invoice from the host organization. The stipend is intended to cover honoraria for participating PWLLE (typically distributed at the discretion of the host site, in line with that site's existing peer-engagement practices), facility costs, and any incidental expenses associated with running the session. A standard invoice template is available for partners who do not already have one of their own.

6. Education & Advocacy Initiative

Beyond the device and training components, the project carries an explicit education and advocacy mandate. This includes producing and disseminating peer-reviewed publications, conference presentations, and partner-facing knowledge products that contribute to the harm-reduction evidence base in Canada.

The first peer-reviewed publication from the project — Aliyari et al., "Street drug monitoring with networked spectrometers powered by machine learning: a pilot study in Ontario, Canada," published open-access in *Harm Reduction Journal* (Volume 23, Article 45, February 2026, DOI: 10.1186/s12954-026-01403-3) — is the canonical reference for the project's methodology, validation results, and behavioural-outcome findings to date.² Additional publications and knowledge products are in preparation and will be made available as they are completed.

7. Health Canada Section 56 Exemption — Required of All Partners

Drug-checking services in Canada operate under federal authority granted through subsection 56(1) of the Controlled Drugs and Substances Act (CDSA), commonly referred to as a "Section 56 exemption."⁸ This is a standalone federal pathway, distinct from the provincial frameworks that govern supervised consumption services. A valid, active Section 56 exemption is a non-negotiable requirement for any organization conducting drug-checking activities, including any organization that hosts the activities of another organization on its premises.

Practically, this means that every partner site in this network — whether a community health centre, a paramedic service, a harm-reduction agency, or a host of mobile outreach — must hold its own approved §56(1) exemption authorizing the possession, transport, and analysis of controlled substances for the specific purpose of drug checking.⁹

7.1 Exemption Types

Health Canada issues two relevant exemption types under §56(1): “Non-Mobile,” which authorizes drug-checking activities at a fixed, named address; and “Mobile,” which authorizes drug-checking activities across an approved geographic area and at outreach or pop-up locations within it. Many partner sites in the network hold one type only; several hold both, allowing fixed-location drug checking alongside community outreach work.

7.2 Application, Renewal, and Western Support

Western University provides direct support to partner sites throughout the exemption application, renewal, and amendment processes. This includes providing redacted templates of approved applications, walking partner staff through the federal application form, reviewing draft submissions before they go to the Office of Controlled Substances, and serving as a liaison with Health Canada’s exemption secretariat where helpful.⁹ Templates for the §56(1) application — both blank and a redacted approved example — are provided to active partners as part of onboarding materials.

All partner sites are asked to forward copies of new exemptions, renewals, and amendment notices to the project manager promptly upon receipt, so that the project’s central exemptions tracker remains current and so that any expiry approaching the end of the project term can be flagged early.

8. Partnership — What We Provide and What We Ask

8.1 What Western University Provides to Each Partner Site

Western University, in collaboration with Scatr Inc. and through Health Canada SUAP funding, provides each partner site with the following:

- One Scatr Series One Raman spectrometer (additional units where capacity warrants), shipped and configured at no cost to the partner site.
- Onboarding training for site staff on device operation, sample handling, and the Scatr cloud platform.
- A one-time, no-cost DCP Training & Certification session for People with Lived and Living Experience drawn from the partner’s service user community, with a \$3,000 CAD stipend to the host site.
- Direct support with Section 56 exemption applications, renewals, and amendments, including templates, drafting review, and Health Canada liaison.
- Pre-paid sample transport to the Western University laboratory under a documented chain-of-custody workflow.
- Confirmatory laboratory analysis of submitted samples (Raman → mass spectrometry, with onward referral to the federal Drug Analysis Service for a subset).

- Access to all project documents and ongoing updates via the Project Partner Dashboard, including standard operating procedures, ethics templates, exemption tools, regulatory bulletins, and the project's peer-reviewed and grey-literature publications.
- Direct, ongoing access to the project manager and principal investigator for any operational, regulatory, or research question that arises.

8.2 What We Ask of Each Partner Site

In return, partner sites are asked to:

- Hold an active and valid Health Canada §56(1) exemption for drug-checking activities at the site, of an exemption type appropriate to the site's service model.
- Sign a Collaborative Site Agreement with Western University setting out roles, responsibilities, and intellectual-property terms.
- Operate the Scatr Series One in line with the device's standard operating procedure and Western's sample-preparation SOP.
- Use the Scatr cloud platform to record drug-checking activity and submit samples for laboratory confirmation in accordance with the project's standard work.
- Host one DCP Training & Certification session for People with Lived and Living Experience drawn from the site's service user community, in either in-person or virtual format.
- Forward copies of new and renewed Section 56 exemption documents to the project manager as soon as practicable upon receipt.
- Engage with the project manager and principal investigator on any matter that may affect the site's ability to deliver drug-checking services or that has implications for the broader network (e.g., regulatory changes, staffing transitions, exemption issues).

9. Next Steps

If, after reviewing this document, your organization is interested in joining the network as a partner site, the next step is a brief follow-up conversation with the project manager. From there, a tailored onboarding plan can be developed that takes into account the site's current Section 56 status (in place, in progress, or not yet started), staffing model, geographic context, and timing preferences for device deployment and DCP Training.

We do want to be transparent that the project's remaining device allocations are limited and that we currently maintain a waiting list of organizations interested in joining the network. This document is therefore offered as an information package rather than a confirmation of partnership — receiving it does not constitute a commitment from Western University. Where capacity allows, we work through interested sites in consultation with the principal investigator and the project team, considering geographic balance, programmatic fit, and Health Canada reporting obligations alongside each site's readiness. We genuinely appreciate your interest and your patience as we navigate these constraints together.

All onboarding is conducted at no cost to the prospective partner site. Inquiries, requests for additional documents, or requests for an introductory call should be directed to the contacts below.

Project Contacts

PRINCIPAL INVESTIGATOR Professor François Lagurné-Labarthet <i>Principal Investigator</i> Email: flagugne@uwo.ca Phone: 519-661-2111 x81006 Faculty of Science, Western University	PROJECT MANAGER Cameron Brown <i>Research Associate & Project Manager</i> Email: cbrown58@uwo.ca Phone: 226-238-9970 Faculty of Science, Western University	SCATR PARTNER Katelyn Melo <i>Head of Client Success, Projects & Communications</i> Email: katelyn.melo@scatr.ca Scatr Inc.
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References

Numbered references are cited in the body of this document using bracketed superscript markers.

1. Health Canada. Substance Use and Addictions Program (SUAP) — Active Projects. <https://www.canada.ca/en/health-canada/services/substance-use/canadian-drugs-substances-strategy/funding/substance-use-addictions-program/active-projects.html>
2. Aliyari, E., Brown, C., Van Boheemen, M., Wardlaw, L., Storm, T., Hopkins, A. M., Ezepue, S., Dewar, D., Sodtke, L., McNab, K., Watkins, J., Pham, A. T., Oudshoorn, A., & Laguné-Labarthe, F. (2026). Street drug monitoring with networked spectrometers powered by machine learning: a pilot study in Ontario, Canada. *Harm Reduction Journal*, 23, Article 45. <https://doi.org/10.1186/s12954-026-01403-3>
3. Impact Canada. Drug Checking Technology Challenge — Government of Canada. <https://impact.canada.ca/en/challenges/drug-checking-challenge>
4. Government of Canada. (2021, July 22). Government of Canada announces the grand prize winner of the Drug Checking Technology Challenge. <https://www.canada.ca/en/health-canada/news/2021/07/government-of-canada-announces-the-grand-prize-winner-of-the-drug-checking-technology-challenge.html>
5. Western University News. (2023, April). Health Canada grant funds innovative drug-checking technology. <https://news.westernu.ca/2023/04/health-canada-grant-funds-innovative-drug-checking-technology/>
6. Public Health Agency of Canada. Opioid- and stimulant-related harms in Canada — surveillance dashboard. <https://health-infobase.canada.ca/substance-related-harms/opioids-stimulants/>
7. Canadian Institutes of Health Research, Tri-Council Policy Statement: Ethical Conduct for Research Involving Humans (TCPS 2, 2022). https://ethics.gc.ca/eng/policy-politique_2022.html
8. Government of Canada. Controlled Drugs and Substances Act (S.C. 1996, c. 19), Section 56(1) — Exemption by Minister. <https://laws-lois.justice.gc.ca/eng/acts/c-38.8/section-56.html>
9. Health Canada. Office of Controlled Substances — Application for a subsection 56(1) exemption (Drug Checking). <https://www.canada.ca/en/health-canada/services/health-concerns/controlled-substances-precursor-chemicals/exemptions.html>

Appendix A — Collaborative Site Agreement (Example Template)

The pages that follow reproduce the Collaborative Site Agreement that was used in the project's previous funding year. It is included here strictly as an illustrative example so prospective partner sites can see, in advance, the general structure and content of the agreement they would be asked to sign upon joining the network. Each page is marked accordingly.

The agreement is a three-party document executed between Western University, Scatr Inc., and the partner site. It covers scope of work, term and termination, site responsibilities, compensation and invoicing for DCP Training sessions, confidentiality and privacy, data ownership, publication rights, liability and insurance, and standard general clauses. Specific dates, dollar amounts, and named individuals are subject to update for the current funding year, and the final agreement issued to each new partner site at the time of onboarding will reflect those updates. Nothing in the example pages constitutes a binding offer.

COLLABORATIVE AGREEMENT

This Agreement is made as of January 1, 2025 ("**Effective Date**").

BETWEEN:

THE UNIVERSITY OF WESTERN ONTARIO, a university incorporated under *The University of Western Ontario Act*, as amended, and having its administrative offices at Support Services Building, Suite 5150, 1393 Western Road, London Ontario N6G 1G9 Canada ("**Western University**")

AND:

SCATR INC. a company incorporated within the laws of Ontario and located at 1 Yonge Street, Suite 1801, Toronto, Ontario M5E 1W7 ("**Scatr**")

AND:

, having its offices at ("**Site**")

Re: Project entitled "Leading the Way: PWLLE at the Forefront of Drug-Checking Initiatives" ("**Project**")

(Western University, Scatr and Site are referred to in this Agreement individually as a "**Party**" and collectively as the "**Parties**").

WHEREAS in collaboration with Ari Forman of Scatr, Dr. Francois Lagugne-Labarhet ("**Principal Investigator**") and Dr. Abe Oudshoorn ("**Co-Investigator**") both of Western University (collectively the "**Research Team**") have designed and developed the Project;

AND WHEREAS Western University has received funding from Health Canada (the "**Sponsor**")

AND WHEREAS Western University and Scatr wish to engage the services of the Site, and the Site wishes to be so engaged, to participate in the Project protocol (the "**Scope of Work**") as detailed and attached as Schedule "A", in accordance with the terms and conditions of this Agreement.

NOW, THEREFORE, in consideration of the premises and mutual promises and covenants set out in this Agreement, the Parties hereto agree as follows:

1. Scope of Work

1.1 The Project will be conducted by or under the direction of the Principal Investigator who, in collaboration with the other Research Team, shall coordinate the Project at the Site in accordance with the Scope of Work and along with its approved amendments, hereby incorporated into this Agreement by reference. The Principal Investigator, Co-Investigator and/or Western University may amend the Protocol from time to time during the term of the Project, and a copy of such amendments will be provided to the Parties.

1.2 The Site will receive a device and its computer for use in this Project from Scatr called the SCATR SERIES 1 (the "**Device**"). The Device and computer will be used by the Site for the Term of the Project, as defined in Article 2, but shall remain the property of Western University. At the end of the Term, the Device will be sent to Western University.

- 1.3 The use of the Device by the Site is subject to their local and federal regulatory approvals. Scatr may enter into a separate agreement with the Site solely in regard to the maintenance of the Device and access to the database. There is a minimum use of the Device following an initial ramp up over the first three months of the Term. The Site will ideally endeavor an average minimum target of 60-80 scans per month. If Western University and Scatr determine the Device is not being adequately used by the Site, they have the right to ask for the return of the Device to enable another site the opportunity to use it.

2. Term

- 2.1. This Agreement will be effective as of ____, 202 ("Effective Date") and continue in full force and effect until ____ ("End Date"), unless the Project is completed, or otherwise extended, renewed, or amended by mutual written consent. The period of time between the Effective Date and the End Date is herein referred to as the **Term**. The Project will be conducted according to the Scope of Work.

3. Responsibilities of the Site

3.1. The Site shall:

- a) exercise due care in conducting the Project in compliance with the International Council for Harmonization of Technical Requirements for Pharmaceuticals for Human Use ("ICH") Guidelines for Good Clinical Practice, the Tri-Council Policy Statement: Ethical Conduct for Research Involving Humans ("TCPS2"), all applicable Health Products and Food Branch of Health Canada ("HPFB") regulations or other applicable federal regulations;
- b) assume responsibility for the conduct of the Project at the Site and conduct the Project according to the Scope of Work (subject to any amendments). Any changes in the procedure set out in the Scope of Work will only be made if considered necessary by the Site to protect the safety, rights or welfare of the participants, provided that the Site promptly notifies the Principal Investigator of such deviation. Such deviations from the terms of the Scope of Work shall not constitute negligence, error, omission or malfeasance on the part of the Site;
- c) ensure that any support staff shall comply with the terms of the Scope of Work and any amendments to the same extent as the Site hereunder. The Site will take appropriate steps to inform each such person of his/her/their obligations hereunder and to obtain his/her/their agreement to abide by the terms and conditions of this Agreement;
- d) ensure that users complete accurately the online questionnaire associated with each scan and submit them promptly.

4. Compensation & Support

- 4.1 In Year 1 of the Project (April 1st 2025 - March 31st 2026), Western University will pay the Site up to three thousand dollars (\$3,000 CAD) (the "Funds") per in-person meeting involving People with Living and Lived Experience ("PWLLE"). The Site shall send Western University an invoice for up to \$3k, for the payment of the in-person meeting. The cost incurred can include hospitality for the meeting as well as compensation for PWLLE's time. The meeting must be held during Year 1 and the invoice received prior to March 31, 2026.
- 4.2 Depending on funding availability, additional compensated sessions involving PWLLE may be conducted at the Site in Year 2 (April 2026 – March 2027) or Year 3 (April 2027 - March 2028) of the Project. As above, the cost incurred can include hospitality for the meeting as well as compensation for PWLLE's time. If approved, the meeting(s) must be held and within the same funding year.

- 4.3 Each invoice should state the period for which the Funds are being requested and should be submitted on the Site's standard billing form and shall reference this Agreement.

Invoices shall be delivered to:

Kelly Malone, Financial Officer
The University of Western Ontario
Research Finance, Support Services Building Suite 6100
1393 Western Road
London, Ontario N6G 1G9
Phone Number: (519) 661-2111 ext. 87479
Email: kmalone7@uwo.ca

With copy to:

Dr. Francois Lagugne-Labarhet
Room 0202, Material Science Addition,
301 Perth Drive, London, Ontario N6G 2V4
Phone Number: (519) 661-2111 ext. 81006
Email: flagugne@uwo.ca

- 4.4 All properly submitted and verified invoices shall be paid within sixty (60) days of delivery to Western University, provided that Western University shall have the right to refuse to pay all or any portion of any invoice pending verification of the accuracy of the invoice or resolution of any dispute with Collaborator regarding any invoice.

Payments will be directed to:

Name
Title
Address
Phone Number:
Email address

5. Confidentiality

- 5.1. During the course of the Project, the Research Team may provide material to the Site (including scientific, technical, clinical, and commercial information) that are considered confidential and necessary to assist the Site in the conduct of the Project, including but not limited to the Scope of Work ("**Confidential Information**"). Confidential Information disclosed in writing shall be clearly labeled as "Confidential" and if disclosed other than in writing, then the Research Team shall identify such information as confidential at the time of disclosure and shall summarize such disclosure in writing and label it "Confidential" within thirty (30) days of the original disclosure. The Site agrees to use the Confidential Information for the limited purpose of performing the Project; and, except as required by applicable laws, not to disclose such Confidential Information to third parties, or not to make copies of such Confidential Information for third parties, without the prior written consent of the Research Team, Western University and/or Scatr, as applicable, which consent may be given or withheld at their discretion. The Site further agrees to deliver all tangible copies of such Confidential Information to the Research Team upon termination or natural expiration of this Agreement or earlier upon request, except that Site shall be entitled to keep one (1) archival copy of the Confidential Information for the purpose of determining their obligations hereunder. All obligations of Scatr and the Site under this Section 5.1 shall survive for a period of ten (10) years, from the effective date of this Agreement. However, the obligation of confidentiality shall not apply to information that the receiving Party can show by competent documentary proof, that:

- a) was generally available to the public or otherwise part of the public domain at the time of disclosure to the receiving Party;
- b) became generally available to the public or otherwise part of the public domain after its disclosure to the receiving Party other than through an act or omission of the receiving Party;
- c) was already properly known to the receiving Party at the time of disclosure to the receiving Party as evidenced by prior competent records of the receiving Party;
- d) was properly disclosed to the receiving Party, other than under an obligation of confidentiality, by a third party who had no obligation of confidentiality to the Researcher or Western University not to disclose such information to others;
- e) was published pursuant to Section 8 of this Agreement; or
- f) was independently developed by employees of the receiving Party who had no access to the Confidential Information.

In the event that the receiving Party is required by law, judicial or administrative process, regulatory authority, or order to disclose any Confidential Information of the other Party, the receiving Party shall where possible, promptly notify the other Party so that the other Party has an opportunity to oppose such process or order prior to the disclosure of the Confidential Information by the receiving Party.

6. Privacy

- 6.1 The Parties acknowledge that all Personal Information and/or Personal Health Information ("Information") provided to it hereunder shall be subject to Ontario privacy legislation. In the case of Personal Information, as that term is defined under the *Freedom of Information and Protection of Privacy Act*, RSO 1990, c. F31 ("FIPPA"), FIPPA shall apply. In the case of Personal Health Information, as that term is defined under the *Personal Health Information Protection Act*, RSO 2004, SO 2004, s.3, Sched A ("PHIPA"), PHIPA shall apply.
- 6.2 Other applicable Federal, Provincial, or Territorial legislation, may also apply as the case may be, and as agreed upon in writing by the Parties. If the Parties have agreed to the application of FIPPA/PHIPA, and other Provincial, Territorial or Federal legislation, the legislation providing the highest degree of protection for the Information shall apply in the case of a conflict of laws. Where the Parties are subject to substantially similar provincial legislation as acceptable under the terms of the *Privacy Act*, the Parties shall comply with such provincial or territorial legislation in its use, retention, and destruction of all Information provided hereunder
- 6.3 Each Party warrants that it and/or its designee will adhere to and comply with any and all applicable provincial, territorial, and/or federal laws and regulations regarding the protection of Personal Information and Personal Health Information as herein agreed.

7. Data, Materials & Discoveries

- 7.1. Data All rights, title, and interest in and to any and all data arising out of the Project that is generated or developed by the Site or their agents, employees, or representatives, including, without limitation, any sub-investigator including, without limitation, and data generated or collected during the course of the Project from analyses shall be the sole and exclusive property of Western University.
- 7.2. Use of Data by Western University Without limiting the foregoing, Western University shall have a non-exclusive, royalty-free, irrevocable, perpetual right to use the data described in Section 7.1, for the purpose of the Project and internal and academic research purposes.
- 7.3. Materials The Site shall promptly and reasonably disclose to the Principal Investigator and Western University any materials created or developed in the course of or as a result of the research performed hereunder in relation to the Project (hereinafter "Materials"). All right, ownership, and title to materials (as defined in Article 7.3) arising from the Project shall vest with Western University.

The Parties agree to grant to the other Parties a royalty-free, non-exclusive license to use Inventions for internal and academic research purposes.

- 7.4. Right of Sponsor. The Principal Investigator shall report to the Sponsor what Materials, if any, have been created or developed under this Agreement and will provide copies of such Materials to the Sponsor if requested to do so. The Sponsor will review the list of Materials provided by the Principal Investigator for the purpose of determining if the Sponsor wishes to seek permission to use any such Materials. All Parties will cooperate to provide the Sponsor with the right to use such Materials as it may request.

8. Publication

- 8.1. The Research Team will have the right to publish and/or disclose publicly, information and/or data arising from the Project and the Scope of Work provided. The Site may ask to review the document prior to publication to review the document for confidential or proprietary information and for comment at least thirty (30) days prior to the Publication's submission for disclosure. Further, any information identified as being Confidential Information shall be deleted from the Publication. The Site can choose whether it wishes to be identified in any publications.
- 8.2. The final analysis and interpretation of the data generated by the Site in the performance of this Project remains with the Principal Investigator.

9. Liability & Insurance

- 9.1. No Party makes any representations or warranties whatsoever, whether express or implied, that the Project will achieve any particular results.
- 9.2. The Parties acknowledge and agree that they shall be responsible and liable for any damage or loss to the extent that such damage and loss arises as a result of the negligence or willful or wrongful acts or omissions of each of the Parties in conducting the Project, such as a failure by either Party to (a) adhere to the terms of the Scope of Work (b) comply with applicable governmental requirements or regulations of Canada (including but not limited to applicable privacy legislation), and (c) conduct the Project in accordance with the medical standards set out in the ICH Guidelines for Good Clinical Practice.
- 9.3. All Parties shall maintain appropriate policies of liability insurance with appropriate limits against any and all foreseeable risks of loss arising out of this Agreement or the Project with limits of not less than \$5,000,000 per occurrence, to cover activities of its directors, officers, employees, agents, faculty, and students. The Parties shall provide evidence of such insurance upon written request of the other Party and will provide to the other Party thirty (30) days prior, written notice of cancellation or non-renewal of its coverage.

10. Termination

- 10.1. A Party may terminate this Agreement upon giving forty-five (45) days' written notice to the other Parties. The forty-five (45) day notice shall not apply if the Party, in its sole opinion, deems that the safety of the participants is a concern.
- 10.2. In addition, a Party may immediately terminate this Agreement by written notice of breach by another Party if the Party fails to remedy such breach within ten (10) days of receipt of such notice. Breach shall be defined as a failure to comply with any provision of the Agreement and the documents incorporated herein.

11. Notice

- 11.1. Any demand, notice or other communication to be given in connection with this Agreement shall be given in writing and shall be given by personal delivery or prepaid postage or by facsimile or other electronic communication addressed to the recipient as follows:

To Principal Investigator:

Dr. Francois Lagugne-Labarhet
Room 0202, Material Science Addition,
301 Perth Drive, London, Ontario N6G 2V4
Tel: 519-661-2111 x81006
Email: flagugne@uwo.ca

To Co-Investigator

Dr. Abe Oudshoorn
Room 2304, FNB
1151 Richmond Street, London, Ontario
Tel: 519-661-2111 x86042
Email: aoudsho@uwo.ca

To Western University:

The University of Western Ontario
Western Research, Support Services Building,
Suite 5150
London Ontario N6G 1G9
Attention: Contract Research Team
Email: researchcontracts@uwo.ca

To Scatr:

Ari Forman, Chief Executive Officer
1 Yonge Street, Suite 1801
Toronto, Ontario M5E 1W7
Tel: 416-986-6408
Email: ari@scatr.ca

To Site:

Address:
Attention:
Tel:
Email:

or to such other address, individual, or electronic communication number as may be designated by notice given by either Party to the other. Any demand, notice, or other communication shall be conclusively deemed to have been given, if given by personal delivery, on the day of actual delivery thereof and, if given by electronic communication, on the day of transmittal thereof if the transmission is received during normal business hours of the recipient on a business day and on the business day following the transmittal thereof if not so transmitted.

12. Use of Name

- 12.1 Notwithstanding anything in the Agreement to the contrary and without further notice, the Parties hereto agree that each of the Parties may disclose the existence of this Agreement, identify the Parties to this Agreement, the Project title, the Principal Investigator in an annual report or in any publication or presentation relating to the results of the Project as provided herein. However, no Party shall use the name of another in any publication, news release, promotion, advertisement, or other public announcements, whether written or oral, that endorses services, organizations, or products, without the prior written approval of the Party, such approval to be determined by the Party in its sole and unfettered discretion. Any such use by a Party shall be subject to any guidelines issued by the other Party relating to its trademarks.

13. General

- 13.1. It is understood and agreed that a Party shall not be or be deemed to be an agent or an employee of any of the other Parties for any purpose and that their relationship shall be that of an independent contractor. Nothing in this Agreement shall constitute a partnership or a joint venture between two or more of the Parties.
- 13.2. This Agreement may be amended only by the further written agreement between authorized representatives of the Parties.
- 13.3. In any conflict between the terms of this Agreement and the documents incorporated herein the terms of this Agreement shall take precedence. The headings and subheadings used in this Agreement are for ease of reference only and shall not amplify, limit or otherwise affect the meaning of the terms and conditions of this Agreement.
- 13.4. No right or license is granted under this Agreement by any Party to any of another Party either expressly or by implication, except those specifically set forth herein. Nothing contained within this Agreement shall impose an obligation of exclusivity on one Party by any of the other Parties. Each Party reserves the right to enter into and participate in other activities (either alone or with a third party) including, but not limited to, other research projects.
- 13.5. This Agreement will be construed, interpreted, and enforced under the applicable laws of the Province of Ontario, without regard to its conflicts of laws provisions, and the laws of Canada applicable therein.
- 13.6. Western University shall be permitted to monitor and review the Project through visits to the Site or other means to ensure compliance. Such permission shall be extended to the Sponsor if requested.
- 13.7. In the event that the Auditor General of Canada conducts an inquiry into the use of funds under the Project, the Site and Scatr shall grant access to its respective documents, records, and premises as required by the Auditor General or his/her representatives or agents for the purposes of such inquiry.
- 13.8. The Site and Scatr shall keep all records, information, databases, reports, and all other documentation related to the project to associated expenditures and costs, for a period of six (6) years from the expiration or termination of this Agreement.
- 13.9. The Site acknowledges that the provision of the Devices is subject to there being an appropriation of funds by the Parliament of Canada and is also subject to the funds being amended or terminated in the event that federal program levels are amended or terminated for any fiscal year in which funding is to be provided to Western by the Sponsor in relation to the Project.
- 13.10. Where appropriate, the Parties shall provide services, programs, projects, or activities in relation to this Agreement in both official languages.
- 13.11. If the Sponsor requires that changes be made to this Agreement, the Parties agree to negotiate in good faith to amend the Agreement to ensure compliance.
- 13.12. Articles 5, 6, 7, 8, 9, 10.3, 11, 12, 13.3, and 13.5 will survive any termination or expiration of this Agreement. No termination hereunder shall constitute a waiver of any rights or causes of action that any Party may have based upon events occurring prior to the termination date.

- IN WITNESS WHEREOF**, the Parties caused this Agreement to be executed, as of the date first written above, in multiple counterparts by their duly authorized representatives who, by signing, confirm their authority to bind their respective party.

Per: Lisa Cechetto
Executive Director, Western Research

Ari Forman
Chief Executive Officer

Date

(Authorized Signature) _____
Name (Print Name): _____
Title: _____
Date: _____

PRINCIPAL INVESTIGATOR:

Dr. Francois Lagugne-Labarhet Date
Professor

SCHEDULE “A”- SCOPE OF WORK

Study Rationale:

The primary goal of this Project is to involve People with Lived and Life Experience (“PWLLE”) to enhance harm reduction strategies, including an optimal use of drug-checking services across participating sites by elaborating new strategies about the location and access of drug-checking technology. In order to engage with these target populations, the Research Team will work together with PWLLE at the Site to assist with outreach, and to propose a more efficient and customized ensemble of solutions.

This Project also aims at ensuring anyone at the Site who is interested and who might benefit from drug checking services have the ability to do so. The Research Team will be specifically assessing on an ongoing basis if minority groups of people who use drugs (“PWUD”) are feeling well supported in using the drug-checking services, including those in remote communities. For urban sites, equity-seeking groups are anticipated to be over-represented among those who are street-involved. Adding outreach to remote communities to the Project model, as well as refining existing services with feedback from PWLLE, will increase access to and utilization of drug-checking services in a targeted way for equity-seeking groups. This model of prioritizing services to those under-represented is precisely equity in action.

The Research Team’s approach to sex- and gender-based analysis acknowledges that health outcomes and experiences with substance use are influenced by a myriad of factors, including socioeconomic status, gender, ethnicity and education. These social determinants can influence the access to resources, treatment and harm-reduction incentives. The Research Team recognizes different cultural groups may have varying perspectives on substance use, stigmatization and treatment, and will be conscious of these nuances, ensuring inclusivity in their materials and approaches. Substance use can also vary based on gender and sexual differences, so the Research Team will incorporate gender-sensitive strategies, especially in communication and outreach. Recognizing the intricate interplay between social determinants of health and the experiences of PWLLE of substance use, this Project aims to incorporate a comprehensive lens of diversity and gender-based analysis.